

Contentious Chamber

Decision on the merits 107/2024 of August 23, 2024

File number: DOS-2022-02420

Subject: Complaint regarding a response granted with a delay of more than 14 months from the exercise of the complainant's right of access

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Dirk Van Der Kelen and Christophe Boeraeve, members;
Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant";

The defendant: Y, hereinafter referred to as "the defendant"

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024.

In accordance with Article 56 of the Law of December 25, 2023, it only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

Decision on the merits 107/2024 — 2/21

I. Facts and procedure

1. On June 7, 2022, the complainant filed a complaint with the Data Protection Authority against the defendant.

2. The complaint concerns the follow-up to the exercise of his right of access by the complainant.

3. The complainant was a customer of the defendant – the latter being a telecommunications company. Between January 27, 2021, and February 26, 2021, the defendant modified several of the complainant's subscriptions and billing, despite the complainant not having made such a request.

4. On August 27, 2021, at the end of a mediation procedure initiated by the complainant on June 26, 2021, with the Telecommunications Mediation Service, the Ombudsman closed the procedure, considering that all the useful information requested by the complainant had been communicated to him. In the context of this procedure, the defendant informed the complainant that the inconveniences experienced regarding his various subscriptions and billing with them stemmed from human error.

Following this response, the complainant stated that he was still waiting for an exact clarification of the situation.

5. On January 25, 2022, he contacted the defendant via their Messenger chat, asking for the contact of their Data Protection Officer (DPO hereinafter). The defendant replied that they did not have an email address for the DPO but would still process his request in the chat.

6. On the same day, the complainant indicated that he wished to exercise his right of access based on Article 15 of the GDPR, specifying that he wanted to be informed for a period from January 1, 2021, to December 31, 2021. He also specified that he wanted a response in a table format that he indicated in

the chat, including for each access to his personal data the following elements: date, employee or "employee number," and reason(s) for the access.

7. Still on the same day, the defendant asked the complainant to clarify his request. The complainant replied the next day that his request was simple and clear.

8. On March 13, 2022, the complainant reminded the defendant of his access request and informed that without a response from them before the end of March 2022, a complaint would be filed with the DPA. On the same day, the defendant, still via chat, requested further explanations from the complainant in order to carry out the necessary verifications. The complainant responded by explaining that he wanted to know who among the defendant's employees accessed his personal data. The defendant replied that they did not have the ability to know this and that the request was "beyond [their] scope of intervention." The complainant reiterated that his request was addressed to the DPO, and that without a response from them before the end of March, he would file a complaint with the DPA. The employee (in charge of the chat) of the

Decision on the Merits 107/2024 — 3/21

the defendant responds by inviting the complainant to contact her again for any further requests.

9.

On June 9, 2022, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

10.

On February 27, 2023, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the case can be addressed on the merits.

On the same date, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendant's response conclusions was set for April 10, 2023, the deadline for the complainant's reply conclusions for May 1, 2023, and the deadline for the defendant's reply conclusions for May 22, 2023.

11.

On March 2, 2023, the defendant agrees to receive all communications related to the case electronically and expresses her intention to exercise the right to be heard, in accordance with Article 98 of the LCA. She requests, in the same email, a copy of the file (Article 98, § 2, 3° LCA), which is sent to her on March 14, 2023.

12.

On March 22, 2023, the complainant agrees to receive all communications related to the case electronically.

13.

On March 28, 2023, the defendant responds to the complainant's access request by providing the activity logs related to the complainant's contract covering the entire year of 2021. For security and confidentiality reasons, the defendant has anonymized all "logins."

14.

On April 7, 2023, the Contentious Chamber receives the response conclusions from the defendant. The defendant having submitted summary conclusions, her arguments are summarized in point 16 below.

15.

On April 30, 2023, the Contentious Chamber receives the reply conclusions from the complainant. In summary, the complainant argues the following:

-

He requests that it be declared that his complaint is well-founded;

-

The rights he derives from Articles 12 and 15 of the GDPR have not been respected by the defendant, given that she did not allow him to contact his DPO, that she responded to his access request with a year and a half delay, and that she never responded regarding the purposes for which her employees accessed the complainant's account and personal data;

Decision on the Merits 107/2024 — 4/21

-

To impose a sanction more severe than a warning, considering the number of requests and reminders he has made;

-

To anonymize all personal data relating to him;

-

Not to anonymize the defendant.

16.

On May 22, 2023, the Contentious Chamber receives the summary conclusions from the defendant. In summary, she argues the following:

-

It was not her responsibility to grant access to the information requested by the complainant, given that: (i) the personal data of the defendant's employees do not constitute personal data of the complainant himself and that the same employees cannot be considered as recipients of the data within the meaning of Article 15.1.c)2 of the GDPR, (ii) the complainant had all the information at the time of filing the present complaint, given that the contact address of the defendant's DPO was available on her website and that the responses to the other requests he made were communicated to him on July 30, 2021, and (iii) the right conferred by Article 15 of the GDPR is not an absolute right and may thus encounter certain limits when balanced against the rights and freedoms of third parties (Article 15.4 GDPR), as in this case where the rights and freedoms of the defendant's employees prevail over the complainant's right of access;

-

The failure to meet the response deadline provided for in Article 12.3 of the GDPR cannot, by itself, lead to a sanction;

-

The Contentious Chamber cannot make a decision regarding the alleged breaches raised by the complainant in his email of March 23, which were not included in the invitation letter to conclude sent to the parties on February 27, 2023, given that it cannot be expected of the defendant to defend herself adequately against them;

-

To declare the alleged breaches raised by the complainant unfounded if the Contentious Chamber were to examine them.

17.

On April 29, 2024, the parties are informed that the hearing will take place on May 31, 2024.

18.

On May 31, 2024, the parties are heard by the Contentious Chamber.

19.

On June 10, 2024, the minutes of the hearing are submitted to the parties.

2 It appears from the defendant's conclusions that it is Article 15.1.b) of the GDPR that was cited. However, it appears from reading them that the defendant intended to refer to Article 15.1.c) of the same Regulation.

Decision on the Merits 107/2024 — 5/21

20. On June 12, 2024, the Contentious Chamber received from the defendant some formal remarks regarding the minutes, which are attached hereto in accordance with Article 54, paragraph 2 of the Internal Rules of Procedure.

21.

On June 17, 2024, the Contentious Chamber received from the complainant some remarks regarding the minutes. These call for substantial changes to the minutes, which cannot be made since the debates were closed at the end of the hearing.

22.

On July 3, 2024, the Contentious Chamber informed the defendant of its intention to impose an

administrative fine as well as the amount thereof, in order to give the defendant the opportunity to defend itself before the sanction is actually imposed.

23.

On July 22, 2024, the Contentious Chamber received the defendant's response regarding the intention to impose an administrative fine and the amount thereof. The content of the defendant's response is summarized in points 85 and following.

II. Reasoning

II.1. Regarding the alleged violation of the right of access (Article 15 of the GDPR)

II.1.1. Regarding the content of the response provided to the right of access by the defendant

24.

The Contentious Chamber recalls that Article 4, 1) of the GDPR defines personal data as "any information relating to an identified or identifiable natural person (hereinafter referred to as 'data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more specific elements characteristic of their physical, physiological, genetic, mental, economic, cultural, or social identity; [...]".

25.

Processing of personal data means "any operation or set of operations performed or not performed by automated means and applied to personal data or sets of personal data, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction"³.

3 GDPR, Article 4.2.

Decision on the Merits 107/2024 — 6/21

26.

Pursuant to Article 15.1 of the GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed. When this is the case, the data subject has the right to access the said personal data as well as a series of information listed in Article 15.1 a) to h), such as the purpose of the processing of their data, the potential recipients of their data, and information regarding the existence of their rights, including the right to request rectification or erasure of their data or to lodge a complaint with the supervisory authority.

27.

The third paragraph of Article 15 specifies that "the data controller shall provide a copy of the personal data undergoing processing. [...]". This paragraph establishes a single right in conjunction with the first paragraph of the same article. Furthermore, it follows from the case law of the CJEU that this right implies the possibility for the data subject to obtain "the reproduction of extracts from documents or even entire documents or extracts from databases [...]" if this proves necessary. However, the interpretation of this right cannot be dissociated from that of Article 15.4, which provides that a balancing must be carried out with the rights and freedoms of others, where applicable.

28.

The Contentious Chamber recalls that the right of access constitutes an essential requirement of the right to data protection, as it serves as the "gateway" that enables the exercise of other rights conferred by the GDPR to the data subject.

29.

In the present case, it appears that the complainant exercised their right of access on January 25, 2022, to which the defendant responded on March 28, 2023, by providing the complainant with a partially anonymized version of the activity logs related to their contract covering the entire year of 2021. The defendant further states in its conclusions that the complainant had already posed similar questions to those in their access request during the mediation process (see point 4), which concluded on August 27, 2021, with the understanding that the Ombudsman considered that all useful information had been communicated to the complainant.

30. In this regard, it must be clarified that in no way can a data controller be relieved of their obligation

to respond to the exercise of the right of access solely on the grounds that the complainant already possessed the requested information prior to the exercise of said right. Article 12.5 does indeed provide that it may be refused to respond to the exercise of one of the rights referred to in Articles 15 to 22 of the GDPR when the request of the data subject is manifestly unfounded or excessive; however, none of these

4 CJEU, judgment of May 4, 2023, Österreichische Datenschutzbehörde, C-487/11, paragraph 32.

5 CJEU, judgment of January 12, 2023, Österreichische Post AG, C-154/12, paragraph 41.

6 CJEU, judgment of January 12, 2023, Österreichische Post AG, C-154/12, paragraphs 37 and 38; CJEU, judgment of December 20, 2017, Nowak, C-434/16, paragraph 57; CJEU, judgment of July 17, 2014, YS et al., C-141/12 and C-372/12, paragraph 44; CJEU, judgment of May 7, 2009, Rijkeboer, paragraph 52.

Decision on the merits 107/2024 — 7/21

Two exceptions were not invoked by the defendant. In any case, the use of one of these exceptions must, pursuant to Article 12.4 of the GDPR, be communicated to the data subject as soon as possible, and no later than "within one month of receiving the request [...]" – which is absent from the exchanges between the complainant and the defendant.

31.

Regarding the content of the follow-up to the access request, the complainant stated in his conclusions that he remained dissatisfied (a) in that he did not receive further explanations regarding the purposes of the processing carried out by the employees of the defendant, and (b) in that he did not obtain the identity of the employees of the defendant who carried out said processing. However, the complainant explicitly stated during the hearing held on May 31, 2024 (see point 18) that he was satisfied with the response that the defendant provided following his access request made on January 25, 2022 – but not with the manner in which the response was delivered to him. The Contentious Chamber nevertheless considers it important to conduct the examination below, as it is not in any way precluded from examining compliance with the GDPR by the fact that part of the complaint has become moot.

a) Access to the purposes of the processing

32.

On the one hand, it appears from the case file that the defendant provided a partially anonymized version of the activity logs covering the entire year 2021 related to the complainant's contract on March 28, 2023. Furthermore, the complainant stated that he was satisfied with the data he received following the email of March 28, 2023.

33. Therefore, it appears to the Contentious Chamber that the complainant's request regarding the purposes of the processing has been exhausted.

b) Access to the identity of the employees who carried out the processing

34. On the other hand, the Contentious Chamber notes that the defendant refused to grant access to personal data concerning its employees (see points 7 and 16) – a request made on January 25, 2022, by the complainant.

35. The Contentious Chamber recalls in this regard that the personal data of employees do not constitute personal data of the data subject, which consequently places them outside the scope of Article 15 of the GDPR. However, as clarified in Recital 63 of the GDPR, this does not allow a data controller to "refuse any communication of information to the data subject."

7 Decision of the Contentious Chamber 63/2020 of September 22, 2020, point 16.

8 CJEU, judgment of June 22, 2023, Pankki S., C-579/21, point 83.

Decision on the merits 107/2024 — 8/21

36. Furthermore, it also emerges from the case law of the CJEU that, given the essential role that the right of access plays for data subjects, they may access the personal data of employees of a data controller who has processed their personal data if this is necessary for the exercise of the other rights guaranteed to them by the GDPR. Moreover, a balancing must be carried out between the right of access of the data subject in question and – as set out in Article 15.4 of the GDPR – the rights and freedoms of others (which, in this case, correspond to the employees of the defendant).

37.

The Contentious Chamber further specifies that the CJEU distinguishes between the employee who acts according to the instructions and under the authority of their employer, and the employee who acts outside the respect of the instructions and authority of their employer – the former benefiting from a higher level of protection of their identity than the latter. However, this distinction has no bearing on the present case.

38. Indeed, the Contentious Chamber notes that the complainant does not demonstrate, in his conclusions, any interest in obtaining the identity of the employees who mistakenly processed his personal data. Moreover, the complainant indicates in his conclusions that he is interested in knowing the purposes of the processing of his personal data, but not necessarily the identity of the employees who carried out this processing. During the hearing held on May 31, 2024, the complainant stated that he had no interest in accessing the purposes of the processing of his data, nor in the identity of the employees who carried it out.

39. Consequently, the Contentious Chamber considers that the rights and freedoms of the employees of the defendant prevail over the complainant's right to access their identity.

40. In any case, the Contentious Chamber recalls, emphasizing the reasoning put forth by the defendant, that the employees of the defendant cannot be considered as recipients within the meaning of Article 15.1.c) of the GDPR.

41.

Therefore, the initial request of the complainant – regarding the identity of the employees of the defendant – cannot be granted based on this provision.

II.1.2. Regarding the modalities related to the exercise of the right of access (Articles 12.2, 12.3, and 15 of the GDPR)

42.

Pursuant to Article 12.1 of the GDPR, it is the responsibility of the data controller to take "appropriate measures to provide any information referred to in Articles 13 and 14 as well as

Decision on the merits 107/2024 — 9/21

to proceed with any communication under Articles 15 to 22 and Article 34 regarding the processing of the data subject in a concise, transparent, understandable, and easily accessible manner, in clear and simple terms [...].

43. Furthermore, it is the responsibility of the data controller to facilitate the exercise of the rights of the data subject (Article 12.2 of the GDPR) and to provide information on the measures taken following a request made under Articles 15 to 22 of the GDPR, without undue delay and in any case within one month of receiving the request. Article 12.3 of the GDPR provides that this period may, if necessary, be extended by two months, taking into account the complexity and number of requests. In such a case, the data controller shall inform the data subject of this extension and the reasons for the delay within one month of receiving the request.

44. In its Recital 59, the GDPR specifies that in order to facilitate the exercise by the data subject of the rights conferred upon them by the same Regulation, "The data controller should also provide means for requests to be made electronically, particularly where personal data is processed electronically." In this regard, the Contentious Chamber has previously had the opportunity to state that "in any event, the data subject should not be penalized in any way for not having sent their request to the correct address."¹²

45. Furthermore, in its Guidelines 01/2022 on the right of access¹³, the European Data Protection Board ("EDPB") explains that this possibility of extending the response time constitutes an exception to the general rule and can only occur in certain circumstances exceptionally. Moreover, the EDPB notes that if a data controller often finds it necessary to extend this period, it could indicate a failure in their procedure for handling access requests.

46. It follows from all of this that the defendant has the obligation to respond to the exercise of the complainant's right of access under Article 15 of the GDPR in accordance with the provisions of Article 12 of the GDPR, these two articles being intrinsically linked.

47.

Based on the documents in the case, the Contentious Chamber notes two things. On the one hand, it

notes that in its response dated January 25, 2022, to the complainant, the defendant stated that it did not have a dedicated email address for its DPO. Furthermore, in a response dated 13

12 Decision of the Contentious Chamber 41/2020 of July 29, 2020, point 83.

13 EDPB, Guidelines 01/2022 on data subject rights - Right of access, March 28, 2023, point 162, available at: https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf

Decision on the Merits 107/2024 — 10/21

On March 21, 2022, the defendant informed the complainant that their access request was outside of its scope of intervention.

48. In this manner, the Contentious Chamber concludes that the defendant did not facilitate the exercise of the rights of the data subject in accordance with Article 12.2 of the GDPR, as although there was an electronic communication channel, it was unable to respond to the complainant's request or redirect it – for example – to its DPO as it should have done to ensure the full effectiveness of Article 12.2 of the GDPR and thus, of Article 15 of the GDPR exercised by the complainant. In other words, the defendant did not provide the complainant with responses or processing of their request of sufficient quality. This finding cannot be altered by the fact that the email address of the DPO was included, at the time of the events, in the defendant's privacy policy.

49. Moreover, regarding the communication channel used during exchanges between the complainant and the defendant from January 25, 2022, to March 13, 2022, the Contentious Chamber wishes to remind, strictly for informational purposes and without this constituting any position on its part that could lead to a sanction, that the defendant must, in addition to ensuring that the responses provided to complainants via Facebook chat are of sufficient quality, ensure that this communication channel meets the appropriate security requirements as defined in Articles 5.1.f), 24, 25, and 32 of the GDPR.

50. On the other hand, and as already mentioned above (see point 29), it notes that the complainant exercised their right of access on January 25, 2022 – a request to which the defendant responded usefully on March 28, 2023, during the course of the present proceedings.

51. The complainant insists in their conclusions that their access request was addressed with more than 14 months of delay.

52. The defendant, while not denying the delay in responding to the complainant's access request, states that it could not be sanctioned solely based on the failure to comply with Article 12.3 of the GDPR.

53. In this regard, and without ignoring the contents of the judgments of the Market Court 2019/AR/1006 of October 9, 2023, and 2019/AR/1234 of October 23, 2023, the Contentious Chamber nonetheless emphasizes that the exercise of the rights of data subjects can only be truly effective if the data controller is compelled to respond to the exercise of such rights within a reasonable timeframe, which has been set by the European legislator at one month, unless exceptions apply. To assert otherwise would allow the data controller to not react or to react too late, such that the exercise of the right by the data subject would prove entirely futile.

Decision on the Merits 107/2024 — 11/21

Article 12 of the GDPR is, just like the rights of the data subject enshrined in Chapter III of the GDPR, explicitly sanctioned by Article 83.5 b) of the GDPR, without Article 12.3 being excluded. It is useful to clarify that Article 83.5.b) of the GDPR dedicates the higher level of sanctions referred to in Article 83 of the same Regulation.

54. The Contentious Chamber notes that the violation of Articles 12.3 and 15 of the GDPR is undeniable, as the defendant does not contest having responded to the complainant's access request with a 14-month delay. By responding to the complainant's access request well beyond the timeframe set by Article 12.3 of the GDPR, the defendant has committed a continuous violation of the complainant's right of access for 14 months.

55. In conclusion, the Contentious Chamber finds that the defendant violated Articles 12.2, 12.3, and 15 of the GDPR in that the complainant only received a response to their access request with more than 14 months of delay from the defendant, notably because it did not facilitate the exercise of the complainant's right of access. Furthermore, the Contentious Chamber emphasizes that this response

was provided to the complainant within the framework of the exchange of conclusions of the parties in the present proceedings; otherwise, the violation of the complainant's rights would likely have continued. However, the finding regarding Articles 12.2 and 12.3 does not factor into the determination of the sanction, given that these two provisions were not included in the letter by which the Contentious Chamber invited the parties to conclude (see point 10).

II.2. Regarding Other Complaints

56. The Contentious Chamber duly notes the arguments of the parties concerning the additional complaints related to Articles 5, 6, and 7.1 of the GDPR.

57. However, as the defendant recalled in its conclusions, the Contentious Chamber has limited the scope of the discussions to Article 15 of the GDPR. Therefore, it does not seem appropriate to examine these additional complaints, given that the verification of the truth of any one of them could not serve as a basis for imposing a sanction against the defendant.

III. Corrective Measures and Sanctions

III.1. Range of Sanctions

58. Under Article 100 of the LCA, the Contentious Chamber has the power to:

1° dismiss the complaint without further action;

14 Group 29, Guidelines on Transparency under Regulation (EU) 2016/679, WP 260, points 30-32 and 48.

Decision on the Merits 107/2024 — 12/21

2° order the dismissal;

3° pronounce a suspension of the ruling;

4° propose a settlement;

5° issue warnings and reprimands;

6° order compliance with the requests of the concerned individual to exercise their rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance of the processing;

10° order the rectification, restriction, or erasure of data and notification of such to the recipients of the data;

11° order the withdrawal of the accreditation of certification bodies;

12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° forward the file to the Public Prosecutor's Office of the King of Brussels, which will inform it of the follow-up actions taken on the file;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

59. Regarding the administrative fine that may be imposed in execution of Article 83 of the GDPR and Articles 100, 13° and 101 LCA, Article 83 of the GDPR provides:

“1. Each supervisory authority shall ensure that the administrative fines imposed under this article for violations of this regulation, referred to in paragraphs 4, 5, and 6, are, in each case, effective, proportionate, and dissuasive;

2. Depending on the specific characteristics of each case, administrative fines may be imposed in addition to or instead of the measures referred to in Article 58, paragraph 2, points a) to h), and j). In deciding whether to impose an administrative fine and determining the amount of the administrative fine, the following elements shall be duly taken into account in each specific case:

a) the nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the processing concerned, as well as the number of affected individuals and the level of damage they have suffered;

b) the fact that the violation was committed intentionally or negligently;

c) any measures taken by the data controller or the processor to mitigate the damage suffered by the affected individuals;

- d) the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any relevant previous violations committed by the data controller or the processor;
- f) the degree of cooperation established with the supervisory authority in order to remedy the violation and mitigate any possible negative effects;
- g) the categories of personal data affected by the violation;
- h) the manner in which the supervisory authority became aware of the violation, including whether, and to what extent, the data controller or the processor notified the violation;
- i) when measures referred to in Article 58, paragraph 2, have previously been ordered against the data controller or the processor concerned for the same matter, compliance with those measures;
- j) the application of approved codes of conduct pursuant to Article 40 or approved certification mechanisms pursuant to Article 42; and
- k) any other aggravating or mitigating circumstances applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, as a result of the violation.”

III.2. Regarding the imposition of an administrative fine

60. Article 58.2 of the GDPR grants supervisory authorities the power to take one or more corrective measures against data controllers. In accordance with Article 58.2.i) of the GDPR, a supervisory authority may, depending on the circumstances of each case, impose an administrative fine in addition to or instead of the aforementioned corrective measures.

61. In this regard, Article 83.1 of the GDPR requires that a fine imposed by a supervisory authority be, in each case, effective, proportionate, and dissuasive. Article 83.2 of the GDPR sets out a number of criteria that must be duly taken into account in a specific case. Furthermore, the highest fine applies in accordance with Article 83.5.b) of the GDPR. Indeed, in the event of a violation of the rights of the concerned individual (in this case, the right of access guaranteed by Article 15 GDPR), the Contentious Chamber may impose an administrative fine of up to EUR 20,000,000 or, in the case of an enterprise, up to 4% of its total global annual turnover for the preceding financial year, with the higher amount being retained.

62.

A sanction imposed by the APD in the form of a fine must be properly justified, the significance of this sanction having to take into account the circumstances of the specific case on the one hand and being proportionate to the violation observed as well as to the quality of the offender and their financial situation on the other hand. However, no legal provision requires the Contentious Chamber to rule on all the criteria set out in Article 83 of the aforementioned GDPR, nor to indicate the numerical elements related to the method of determining the amount of the imposed sanction. Therefore, the justification of the fine based on a detailed summary of each element considered for the determination of the fine is optional, but has been carried out in this case.

63. In this case, the administrative fine is justified by the fact that the defendant, whose turnover is established at (...EUR) for the year 2023, violated Article 15 of the GDPR over a period of 14 months. This violation was caused by the inability of two employees of the defendant to properly handle the access request made by the complainant, thus indicating serious negligence – despite the fact that the processing of personal data is one of its core activities. Furthermore, the Contentious Chamber takes into account the fact that although the defendant eventually provided a satisfactory response to the complainant's access request, this occurred during the exchange of conclusions between the parties. These elements – further elaborated below – justify imposing an administrative fine, rather than a weaker sanction such as a warning or reprimand.

III.2.1. Calculation of the base amount

64. Nature, severity, and duration of the violation (Article 83, paragraph 2, point a) of the GDPR) – First, the Contentious Chamber notes that the defendant infringed the complainant's right of access. In addition to Article 15 of the GDPR, the right of access is also included in Article 8.2 of the Charter of Fundamental Rights of the European Union and therefore constitutes one of the essential elements of

the fundamental right to data protection; in other words, it is the "gateway" that strengthens the control of data subjects over their data.

15 In this sense, the ruling of the French Council of State, 10th - 9th combined chambers, 14/05/2024, 472221, states that "8. It follows from the preceding provisions that, in the event that the legality of an administrative decision is based on the consideration of a certain number of factors, compliance with the requirement for justification that they provide does not lead its author to have to state only those on which the decision they made is based. Furthermore, there is no provision that the restricted formation of the CNIL should provide an explanation of the amount of the sanctions it imposes. It follows that the restricted formation of the CNIL, which did not have to rule on all the criteria set out in Article 83 of the aforementioned GDPR, nor to indicate the numerical elements related to the method of determining the amount of the imposed sanction, but relied specifically on the criteria set out in points a and k of paragraph 2 of Article 83 of the GDPR as well as on the business model of the applicant company and the weight it represents in its economic sector, did not insufficiently justify its decision," and "11. The restricted formation of the CNIL, in imposing a fine of 3 million euros, complied with the rules set out in Article 20 of the law of January 6, 1978, cited in point 9. Furthermore, it follows from no provision, as stated in point 8, that it should provide an explanation of the amount of the sanctions it imposes. Consequently, the restricted formation of the CNIL did not violate the principle of legality of offenses and penalties."

Decision on the merits 107/2024 — 15/21

concerning and allows the exercise of other rights conferred to the data subject by the GDPR, such as the right to object and the right to erasure.

65. The effectiveness of the right of access is guaranteed by the provisions set forth in Article 12 of the GDPR, which is intrinsically linked to Article 15 of the GDPR, among others. Therefore, by only providing a satisfactory response to the complainant's access request 14 months after the date on which the complainant exercised their right of access, the defendant has committed a continuous violation of Article 15 of the GDPR for more than 14 months.

66. Secondly, regarding the severity of the violation, the Contentious Chamber first notes that the defendant is a telecommunications company, and that the processing of personal data is therefore one of its core activities. Furthermore, as outlined in the above paragraphs, there has been a continuous infringement of Article 15 of the GDPR for 14 months, which constitutes the gateway to the exercise of other rights.

67. Thirdly, concerning the duration of the violation, it has lasted for more than 14 months. Article 12.3 of the GDPR states that the data controller must respond "without undue delay and in any event within one month of receiving the request. If necessary, this period may be extended by two months, taking into account the complexity and number of requests." In this regard, the Contentious Chamber specifies, on the one hand, that the aforementioned extension of the deadline should only be used exceptionally – which otherwise could indicate the need for the data controller to develop its request handling procedures – and, on the other hand, that the data controller must respond to an access request within a period of less than one month if it is able to do so.

68. Deliberate or negligent nature of the violation (Article 83, paragraph 2, point b) of the GDPR) – A distinction is made between violations caused by negligence and those caused deliberately. The deliberate nature of a violation involves meeting two conditions, namely the knowledge of a violation as well as the intention to cause it. Negligence is defined, conversely, by the absence of intentionality in the commission of the offense, although the principle of diligence has not been respected.

69. The Contentious Chamber specifies that a high threshold is set to consider a violation as deliberate. Moreover, negligence can also be assessed by degrees.

70. In this case, there is no indication of intent in the breach of Article 15 of the GDPR. However, given the financial and human resources of the defendant, as well as the fact that the processing of personal data constitutes one of the core activities of the defendant, the Contentious Chamber considers that the defendant has committed serious negligence. This is even more true as the inability to respond to an access request made by the complainant was manifested by two employees of the defendant.

71. Categories of personal data concerned by the violation (Article 83, paragraph 2, point g) of the

GDPR) – It does not appear from the case files that any data other than identification data has been processed by the data controller.

72. Classification of the severity of the violation and setting an appropriate starting amount – The assessment of the above elements – namely the nature, severity, and duration of the violation, as well as the deliberate or negligent nature of the violation and the categories of personal data concerned – allows for determining the degree of severity of the violation as a whole. According to this assessment, the severity of the violation can be classified as "low," "medium," or "high."

73. In this case, it should first be noted that the violation of Article 15 is among the violations listed in Article 83.5 of the GDPR, thus falling under the higher level of Article 83 of the same Regulation. Furthermore, it should be noted that the processing of personal data that prompted the complainant to exercise their right of access constitutes one of the core activities of the defendant. Additionally, the complainant received a response more than 14 months after exercising their right of access, and this during the exchange of conclusions in the present proceedings. However, it does not appear from the case that any data other than identification data was processed by the defendant. Moreover, the violation only concerns the complainant. Furthermore, the harm suffered by the complainant is low, given that they already had part of the answers they were requesting from the defendant and that they were not entitled to access other requested information, namely the identity of the employees who processed their personal data. In any case, the violation committed by the defendant stems from significant negligence on their part.

74. In light of the elements presented above, the Contentious Chamber concludes that the established violation is of low severity. Therefore, for the calculation of the subsequent amount, a starting amount will be set between 0% and 10% of the maximum legal amount provided for in Article 83.5 of the GDPR.

75. The defendant's revenue amounting to (...) EUR for the year 2023, the Contentious Chamber establishes a base calculation amount of 100,000 EUR.

Decision on the merits 107/2024 — 17/21

III.2.2. Mitigating and aggravating circumstances

76.

Measures taken to mitigate the damage suffered by the complainant (Article 83.2.c) of the GDPR) – Regarding the measures taken to mitigate the damage suffered by the complainant, the Contentious Chamber acknowledges that the defendant ultimately provided a complete and satisfactory response to the complainant. However, it cannot be overlooked that this response was given after the parties were invited to submit their conclusions.

77.

Degree of responsibility of the defendant considering the technical and organizational measures implemented in accordance with Article 25 (Article 83.2.d) of the GDPR) – The Contentious Chamber, assessing the level of responsibility of the defendant, finds that the latter is fully responsible for managing the requests from the data subjects it receives, including the right of access.

78.

This responsibility encompasses various aspects, including the effectiveness of the execution of requests, the definition of specific codes to appropriately respond to requests made under Articles 15 to 22 of the GDPR, as well as the understanding and implementation of clear and effective procedures by all staff, from directors to internal personnel.

79.

The Contentious Chamber notes that the defendant had a point of contact with its data protection officer at the time of the events. However, this did not prevent the complainant's access request from receiving a useful response more than 14 months after it was made, particularly due to the fact that the defendant did not forward the complainant's request to its DPO, and even incorrectly stated to the complainant that it did not have a DPO contact point.

80. Violations previously committed by the data controller (Article 83.2.e) of the GDPR) – The Contentious Chamber does not identify any violation of Article 15 of the GDPR previously committed by the defendant, or any other violation that would be relevant in this case. This criterion is therefore deemed neutral, it being understood that compliance with GDPR standards is the norm.

81.

Degree of cooperation with the supervisory authority (Article 83.2.f) of the GDPR) – The Contentious Chamber finds that the defendant was quite cooperative with it. This criterion is deemed neutral, as it is a general duty established by Article 31 of the GDPR.

82.

Manner in which the supervisory authority became aware of the violation (Article 83.2.h) of the GDPR) – The Contentious Chamber became aware of the violation through a complaint. This criterion is deemed neutral.

Decision on the merits 107/2024 — 18/21

83. Any other aggravating or mitigating circumstance (Article 83.2.k) of the GDPR) – No other aggravating or mitigating circumstance emerges from the case at hand.

III.2.3. The effectiveness, disproportionality, and deterrent nature of the fine

84. A fine is deemed effective if it achieves its objectives, such as restoring compliance with the rules and sanctioning unlawful behavior. In this case, the fine aims to sanction the negligent and serious behavior of the defendant. Furthermore, it aims to deter other similar violations in the future. The prolonged violation of the complainant's fundamental rights, despite the complainant's access request and multiple reminders, demonstrates the need for a firm response from the Contentious Chamber. In this case, the defendant, with a turnover of more than (... euros), can bear a fine of 100,000 EUR (less than 0.01% of the retained turnover) without compromising its economic viability. The Contentious Chamber sought a final deterrent fine amount, in order to prevent the defendant from reoffending in the violation of GDPR rules. Additionally, it also seeks to deter other companies from committing similar violations.

III.2.4. Defendant's reaction to the sanction form

85. As a preliminary matter, the defendant argues the circumstances of the case at hand. It states that this is a one-time and isolated infringement, but not an infringement of a systemic nature. This violation would stem not from a deliberate intention or gross negligence, but from simple negligence. It adds that the number of individuals affected by the violation is limited to the complainant alone, who has suffered extremely limited harm – this being justified in particular by the fact that the GDPR violation committed only concerns simple identification data. In this regard, the defendant notes that although the right of access constitutes the "gateway" to the exercise of the other rights conferred by the GDPR, the complainant did not exercise these same rights after receiving a response to his access request on March 28, 2023. In any case, the defendant notes that it has corrected the violation it committed and has implemented additional internal measures, including training for its customer service to enable employees operating there to better recognize access requests, as well as to handle them better. Finally, the defendant points out that it receives an average of 150 access requests per year, and that, consequently, some requests may receive responses beyond the deadlines set by Article 12.3 of the GDPR due to the occurrence of human errors.

86. The defendant contests (i) the choice to impose an administrative fine as well as (ii) its amount.

Decision on the merits 107/2024 — 19/21

(i) Regarding the choice of imposing an administrative fine

87.

On the one hand, the defendant recalls the rulings of the Market Court in which it was held that the mere violation of the deadlines established by Articles 12.3 and 12.4 of the GDPR cannot justify the imposition of a sanction.

88. On the other hand, the defendant denounces a disproportion between the choice of imposing an administrative fine and the facts presented above. The defendant indeed states that the Contentious Chamber has a wide range of sanctions at its disposal. However, it considers that the Contentious Chamber has not justified why the imposition of an administrative fine would be necessary in this case, and why other sanctions, such as a reprimand or warning, would not be appropriate.

(ii) The amount of the administrative fine

89. Ultimately, the defendant considers that the amount of the fine is completely disproportionate to the severity of the facts of the case.

III.2.5. Final amount of the fine

90. In light of the defendant's response, the Contentious Chamber decides to maintain the amount of the fine as communicated to the defendant on July 3, 2024, namely 100,000 EUR.

91.

The defendant indeed puts forward as the only new elements the fact that it has adopted additional internal measures to prevent such a violation from occurring in the future, and the information regarding the average number of access requests it receives per year (150).

92.

First of all, the Contentious Chamber notes that organizing adequate training for staff to enable them to better handle requests for the exercise of rights of data subjects is what is expected of a data controller, especially when it occupies such a position in the market. Compliance with the GDPR being the norm, this element cannot be assessed otherwise than as a neutral criterion.

93. Furthermore, the Contentious Chamber wishes to emphasize that the processing of personal data constitutes a core activity of the defendant, and that given its sector of activity, its size, and the number of clients whose personal data the defendant processes, the risks arising from this are all the more significant. Therefore, the defendant must be more vigilant in protecting personal data and adopt robust procedures to ensure compliance with the GDPR.

Decision on the merits 107/2024 — 21/21

In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be lodged, within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant.

Such an appeal may be introduced by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(sé). Hielke HIJMANS

President of the Contentious Chamber

18 The application contains, under penalty of nullity:

1° the indication of day, month, and year;

2° the name, first name, and domicile of the applicant, as well as, where applicable, their qualifications and national register number or business number;

3° the name, first name, domicile, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer.

19 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry.